

Court No. - 40

Case :- WRIT - C No. - 39618 of 2022

Petitioner :- Surendra Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shamshuddin Khan (S U Khan)

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

On the request of learned counsel for the Electricity Department, put up this matter as fresh on 28.2.2023 for enabling him to seek instructions in the matter.

Order Date :- 16.2.2023

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Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and Shri Sushil Kumar Pandey, learned counsel for the respondent no. 4 and 6.

The present petition has been preferred for the following reliefs:-

"i. Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 05.09.2022 passed by respondent no. 5 Chairman Upbhokta Vyatha Niwaran Forum, Vindhyachal Mandal, Fatahan, Mirzapur.

ii. Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 4 to supply the correct bill to the petitioner of 1 kilowatt.

iii. Issue a writ, order or direction in the nature of mandamus, commanding the respondent no. 4 to decide the representation of the petitioner dated 29.11.2022."

Factual aspect of the matter as per record is that electricity connection of 1 kw was allotted in the name of petitioner under 'Saubhagya Yojna' by the Purvanchal Vidyut Vitran Nigam Limited, Varanasi on 06.09.2019. Consequently, on 31.10.2019 electricity bill was issued to the petitioner by the electricity department of 2 kw. Aggrieved with the same, petitioner filed complaint bearing Complaint No. 659 of 2020 before the fifth respondent and vide order dated 05.09.2022 respondent no. 5 has decided the complaint with direction to the petitioner to deposit the actual bill amounting Rs. 63,360/-. Against the said order, petitioner has moved a representation before the fourth respondent which is still pending.

Shri Sushil Kumar Pandey, learned counsel for the respondent no. 4 and 6 fairly states that if any such

application / representation is pending consideration, definitely the reprieve shall be extended to the petitioner strictly as per the provisions contained under section 6.1 of U.P. Electricity Supply Code, 2005.

In the interest of justice, no useful purpose would be served in keeping the writ petition pending, with the consent of parties, the writ petition is **disposed of** directing the petitioner to file a fresh application / representation before the competent authority, and in case any such application / representation is moved within three weeks' from today, we hope and trust that the authority concerned will consider and decide the representation / application of the petitioner strictly as per the provisions contained under section 6.1 of U.P. Electricity Supply Code, 2005.

Needless to say that it is open to department to proceed in the matter in accordance with law.

Order Date :- 28.2.2023

Bhanu